

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1238

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO FISH AND GAME; AMENDING SECTION 36-105, IDAHO CODE, TO PROVIDE FOR PUBLIC PARTICIPATION PRIOR TO THE IDAHO FISH AND GAME COMMISSION SETTING OF ANY SEASON OR LIMIT ON THE TAKING OF FISH AND WILDLIFE AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 36-105, Idaho Code, be, and the same is hereby amended to read as follows:

36-105. COMMISSION ORDERS, RULES AND PROCLAMATIONS. (1) Adoption and Publication of Rules and Orders. All rules and orders adopted pursuant to the provisions of this title shall be made in accordance with chapter 52, title 67, Idaho Code. Said rules and orders may also be given such other publicity as the commission may deem desirable.

(2) Violation of Rules, Proclamations and Orders. All rules, proclamations and orders made as herein provided shall have full force and effect as law and any person violating any such rule, proclamation or order of the commission, adopted and published as herein set forth, shall be found guilty as set forth in section 36-1401, Idaho Code.

(3) Notwithstanding any other provision of chapter 52, title 67, Idaho Code, the Idaho fish and game commission and the director of the Idaho fish and game department shall be excepted from the requirements of rulemaking when adopting, repealing, or amending any proclamation relating to setting of any season or limit on numbers, size, sex, or species of wildlife classified by the commission as game animals, game birds, furbearers, migratory birds, salmon, steelhead, and resident fish ~~which~~ that may be taken in this state if:

(a) Notice of the proposed proclamation is published in the Idaho administrative bulletin and is provided in the same manner as an open meeting under section 74-204, Idaho Code;

(b) A minimum of a thirty (30) day public comment period is provided when adopting, repealing, or amending any season-setting proclamation. Emergency proclamations are exempt from the public comment period requirement;

~~(b)~~ (c) Notice is given to the director of the legislative services office for review by the germane joint subcommittee as soon as possible after adoption by the commission; and

~~(c)~~ (d) The proclamation ~~shall be~~ is published in a pamphlet or brochure as provided in section 59-1012, Idaho Code, and distributed without charge to the public. The text of the proclamation published in a pamphlet or brochure shall be the official text of the proclamation. Judicial notice shall be taken of the proclamation pamphlet or brochure.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.